

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Kurita	Team: Team # 4	CCRB Case #: 200913366	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 08/27/2009 4:00 PM	Location of Incident: 2nd Avenue and 2nd Street	18 Mo. SOL 2/27/2011	Precinct: 09		
Date/Time CV Reported Thu, 08/27/2009 4:11 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/27/2009 4:11 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Silverio	23765	943816	009 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Daniel Silverio	Abuse: PO Daniel Silverio searched § 87(2)(b)	A . Complainant Uncooperative
B . POM Daniel Silverio	Abuse: PO Daniel Silverio stopped § 87(2)(b)	B . Complainant Uncooperative

Synopsis

On August 27, 2009 § 87(2)(b) called the CCRB and filed a complaint against an NYPD officer. § 87(2)(b) reported that on August 27, 2009 he stood on the corner of 2nd Avenue and 2nd Street in Manhattan when he was approached by PO Daniel Silverio of the 9th Precinct. PO Silverio removed § 87(2)(b)'s hat, and removed his MP3 player, his asthma pump, his hand lotion and his headphones from his pockets (**Allegation A**). PO Silverio requested his identification and § 87(2)(b) complied (**Allegation B**). § 87(2)(b) inquired why he was searched and PO Silverio told him that there was a report of individuals selling drugs in the vicinity. § 87(2)(b) requested PO Silverio's name and shield number which PO Silverio provided. PO Silverio drove away from the location in an unmarked blue patrol car.

Several steps were taken to have § 87(2)(b) provide a sworn statement at the CCRB. On October 8, 2009, § 87(2)(b) failed to appear at the CCRB for a previously scheduled appointment. The appointment was scheduled by § 87(2)(b) and confirmed by § 87(2)(b) his case worker at § 87(2)(b). He did not notify that he would be late, that he would miss his appointment, or that he would reschedule. A call on October 14, 2009 to his primary contact phone number resulted in mailbox full message. A call on October 14, 2009 to his secondary contact phone number resulted in a number no longer in service message. On October 14, 2009, the undersigned left a message with § 87(2)(b) that if he does not reschedule his appointment to provide a statement to the CCRB by October 30, 2009, his case would be closed without a thorough investigation. § 87(2)(b) was sent a missed appointment letter on October 8, 2009 and a final contact letter specifying the October 30, 2009 deadline on October 21, 2009. No letters to § 87(2)(b) were returned as undeliverable.

§ 87(2)(g)

§ 87(2)(b). It is therefore recommended that the case be closed as **complainant uncooperative**.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: